

GAHC010078952025



2025:GAU-AS:10406

THE GAUHATI HIGH COURT
(HIGH COURT OF ASSAM, NAGALAND, MIZORAM AND ARUNACHAL PRADESH)

Case No. : I.A.(CrI.)/360/2025

RAFIQUE HOQUE
S/O- HABIBOR RAHMAN, R/O- VILL- JHAPUSABARI PART- V, PS
GOLOKGANJ, DIST- DHUBRI, ASSAM

2: HABIBOR RAHMAN @ BERA SK.
S/O LATE AFSAR AHMED
R/O VILL-JHAPUSABARI PART-V
P.S. GOLAKGANJ
DIST. DHUBRI
ASSA

VERSUS

THE STATE OF ASSAM
REP BY THE PP, ASSAM

2:PASAR UDDIN SK.
S/OLATE SABATULLA SK.
VILL-KAIMARI PT.VII
PRESIDENT/SECRETARY KAIMARI PT. VII
VDP
P.S. GOLAKGANJ
DIST. DHUBRI

3:ANJUMA KHATUN
W/O RAFIQUE HOQUE
RESIDENT OF JHAPUSABARI PART V
PS GOLAKGANJ
DIST DHUBRI
ASSA

Advocate for the Petitioner : MRS K DEVI, MS S A KHALIFA

Advocate for the Respondent : PP, ASSAM,

Linked Case : CrI.Pet./344/2025

RAFIQUE HOQUE AND ANR
S/O- HABIBOR RAHMAN
R/O- VILL- JHAPUSABARI PART- V
PS GOLOKGANJ
DIST- DHUBRI
ASSAM

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S/O LATE AFSAR AHMED
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P.S. GOLAKGANJ
DIST. DHUBRI
ASSAM

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THE STATE OF ASSAM AND ANR
REP BY THE PP
GOVERNMENT OF ASSAM

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S/OLATE SABATULLA SK.
VILL-KAIMARI PT.VII
PRESIDENT/SECRETARY KAIMARI PT. VII
VDP
P.S. GOLAKGANJ
DIST. DHUBRI

Advocate for : MRS. K DEVI

Advocate for : PP

ASSAM appearing for THE STATE OF ASSAM AND ANR

BEFORE
HON'BLE MRS. JUSTICE MITALI THAKURIA

O R D E R

Date : 08.08.2025.

Heard Mrs. K. Devi, learned counsel for the applicant/petitioner. Also heard Mr. P. Borthakur, learned Additional Public Prosecutor, Assam for the State respondent.

This Interlocutory Application is filed praying for impleading the victim girl as respondent No.3, in pursuant to the order dated 20.03.2025, passed in Criminal Petition No.344/2025.

It is submitted by Mrs. K. Devi, learned counsel for the applicant that inadvertently, the victim was not made a party in the connected Criminal Petition and accordingly, it is submitted that the victim may be impleaded as respondent No.3.

Mr. P. Borthakur, learned Additional Public Prosecutor, Assam has raised no objection in this regard.

Accordingly, the prayer is allowed.

The victim girl may be impleaded as respondent No.3 in the connected Criminal Petition.

The petitioner shall take necessary steps to amend/modify the cause title of the case.

With the above direction, this Interlocutory Application stands disposed of.

JUDGE

Comparing Assistant